

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zev Carter	Team: Squad #03	CCRB Case #: 201903941	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/01/2019 8:04 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/18/2021	Precinct: 79		
Date/Time CV Reported Wed, 05/01/2019 10:24 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/08/2019 10:34 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Donna Gandolfo	00722	955940	079 PCT
2. POM Jose Cadavid	09085	941483	079 PCT
3. An officer			079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Scott Hughes	02410	953977	079 PCT
2. POM Tahir Popovic	13041	966281	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer asked about § 87(2)(b) s immigration status.	A . Unfounded
B . POM Jose Cadavid	Abuse: Police Officer Jose Cadavid refused to provide his name to § 87(2)(b)	B . Unfounded
C . POM Jose Cadavid	Abuse: Police Officer Jose Cadavid refused to provide his shield number to § 87(2)(b)	C . Unfounded
D . POF Donna Gandolfo	Abuse: Police Officer Donna Gandolfo refused to provide her name to § 87(2)(b)	D . Unfounded
E . POF Donna Gandolfo	Abuse: Police Officer Donna Gandolfo refused to provide her shield number to § 87(2)(b)	E . Substantiated

Case Summary

On May 1, 2019, § 87(2)(b) filed this complaint with IAB § 87(2)(b) over the phone. The CCRB received this complaint on May 8, 2019.

On May 1, 2019, at approximately 8:04 p.m., § 87(2)(b) was inside of partment § 87(2)(b) in Brooklyn. § 87(2)(b) called 911 to report that her superintendent had burglarized her apartment. Police Officers Jose Cadavid and Donna Gandolfo of the 79th Precinct responded. An officer asked about § 87(2)(b) immigration status (**Allegation A: Abuse of Authority, unfounded**). PO Cadavid refused to provide his name and shield number to § 87(2)(b) (**Allegations B and C: Abuse of Authority, unfounded**). PO Gandolfo refused to provide her name and shield number to § 87(2)(b) (**Allegations D and E: Abuse of Authority, unfounded and substantiated, respectively**). No arrest was made and no summons was issued during this incident.

This case contains body-worn camera (BWC) footage from PO Cadavid, PO Gandolfo, and Sergeant Scott Hughes of the 79th Precinct (**01, 02, 03 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: An officer asked about § 87(2)(b)'s immigration status.

§ 87(2)(b) stated that on May 1, 2019, at approximately 8:03 p.m., she was at her apartment decided to call 911 because ongoing harassment from her apartment building's superintendent had become too much to handle (**04 Board Review**). PO Gandolfo and PO Cadavid arrived at § 87(2)(b) apartment, and she let them in.

§ 87(2)(b) stated that PO Cadavid and PO Gandolfo began to ask her questions about whether she needed to go to the hospital, and whether she was taking any medications. The officers told § 87(2)(b) to stand up against her wall. § 87(2)(b) told the officers that she had a machete inside of her bedroom that she planned to use against her superintendent if he ever entered her apartment. § 87(2)(b) asked to leave the wall and resume cooking for herself. PO Gandolfo told § 87(2)(b) to "shut up."

§ 87(2)(b) called IAB from her phone because she was upset by the officers' conduct. The officers told her to put the phone away. Next, PO Gandolfo called IAB and explained that she was already investigating § 87(2)(b) complaint. PO Gandolfo made a second phone call and spoke to an unknown individual. § 87(2)(b) overheard the individual on the other end of the phone call ask both PO Gandolfo and PO Cadavid whether § 87(2)(b) had identification. This individual instructed the officers to take § 87(2)(b) identification and determine whether she was an illegal alien. § 87(2)(b) volunteered her identification upon hearing this. She said, "I'm not an illegal alien." The officers never brought up the issues of § 87(2)(b) citizenship again.

PO Cadavid and PO Gandolfo provided statements that were consistent with one another (**05, 06 Board Review**). Both stated that after § 87(2)(b) invited them into her apartment, neither officer witnessed any signs of forced entry inside of the apartment or on the front door. § 87(2)(b) told the officers that she knew that her superintendent had broken into her apartment for three reasons: First, her superintendent was the only individual besides herself with a copy of the keys to her apartment. Second, § 87(2)(b) presented an electronic alarm system to the officers.

PO Gandolfo stated that § 87(2)(b) did not explain how this alarm system would prove that a burglary had occurred. PO Cadavid stated that the alarm system was unplugged and placed on her kitchen counter. Third, § 87(2)(b) told the officers that she put a bucket of water in front of her bedroom door before leaving her apartment, and returned to find that it had been moved. In PO Gandolfo and PO Cadavid's opinion, no burglary had occurred. The manner in which § 87(2)(b) was talking and the nature of her complaint made PO Gandolfo believe that § 87(2)(b) may have been suffering from early-onset dementia.

PO Cadavid and PO Gandolfo stated that § 87(2)(b) called 911 and reached IAB. PO Cadavid stated that he spoke over § 87(2)(b) voice and informed the dispatcher that police officers were already at the location.

PO Cadavid stated that he called Sgt. Hughes and requested that he come to the location because § 87(2)(b) had made a complaint against him and PO Gandolfo. PO Gandolfo stated that either she or PO Cadavid called Sgt. Hughes, but could not specify the contents of this communication.

PO Cadavid and PO Gandolfo stated that § 87(2)(b) brought up the subject of immigration of her own accord. She complained about past issues that she had with other police officers. PO Cadavid stated that § 87(2)(b) said officers had asked her about her immigration status in the past. Both officers stated that § 87(2)(b) immigration status was never of their concern, and both denied inquiring about her immigration status. PO Gandolfo stated that Sgt. Hughes never directed her to ask about § 87(2)(b) immigration status.

Both officers' BWC footage is consistent with the statements that they provided (**01, 02 Board Review**). The footage does not show PO Gandolfo using any means of communication to discuss § 87(2)(b) immigration status.

§ 87(2)(g)
Given this, it is recommended that **Allegation A** be **unfounded**.

Allegation (B) Abuse of Authority: Police Officer Jose Cadavid refused to provide his name to

§ 87(2)(b)
Allegation (C) Abuse of Authority: Police Officer Jose Cadavid refused to provide his shield number to § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Donna Gandolfo refused to provide her name to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Donna Gandolfo refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) stated that after she provided her identification to the officers, she called her friend § 87(2)(b) on the phone (**04 Board Review**). She told § 87(2)(b) what was going on in her apartment. PO Gandolfo took § 87(2)(b) phone and spoke to § 87(2)(b). § 87(2)(b) heard PO Gandolfo and PO Cadavid being told to stay where they were. § 87(2)(b) asked the officers to provide their names and shield numbers to her. The officers, however, never gave § 87(2)(b) this information.

PO Cadavid stated that he did not recall whether § 87(2)(b) requested his or PO Gandolfo's name or shield number, and did not recall whether he or PO Gandolfo voluntarily provided this information (**05 Board Review**).

PO Gandolfo stated that she did not recall whether § 87(2)(b) requested PO Cadavid's name or shield number, or whether PO Cadavid volunteered this information (**06 Board Review**). Initially, PO Gandolfo denied that § 87(2)(b) requested her own name or shield number, and did not recall whether she volunteered this information to § 87(2)(b).

BWC footage obtained by the investigation does not show § 87(2)(b) requesting any officers' information, with one exception: in PO Gandolfo's BWC footage, at 59:50, § 87(2)(b) tells PO Gandolfo, "listen" (**02 Board Review**). PO Gandolfo yawns and says, "Yeah." § 87(2)(b) says, "Give me your number." PO Gandolfo does not respond. § 87(2)(b) is standing approximately 15 feet away from PO Gandolfo, in § 87(2)(b) living room. Two are facing one another.

After being shown her body-worn camera footage, PO Gandolfo acknowledged that § 87(2)(b) did request her shield number but stated that she did not know that § 87(2)(b) had done so in the moment.

NYPD Patrol Guide Procedure 203-09 states that officers are to courteously and clearly state their shield numbers, or otherwise provide them, to anyone who requests that they do so (**07 Board Review**).

§ 87(2)(g)

Accordingly, it is recommended that **Allegations B, C, and D** be **unfounded**.

§ 87(2)(g)

Accordingly, it is recommended that **Allegation E** be **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in one other allegation (**08 Board Review**).
 - § 87(2)(b)
- PO Gandolfo has been a member of service for five years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Cadavid has been a member of service for 13 years and has been a subject in five CCRB complaints and nine allegations, one of which was substantiated.
 - 200900336 involved a substantiated allegation of retaliatory arrest. The Board recommended charges and the NYPD did not take disciplinary action.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
- A FOIL request for a Notice of Claim regarding this incident was filed on November 13, 2019, and will be added to the case file upon receipt (**09 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Squad No.:

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature _____ Print Title & Name _____ Date _____

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____